

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Thursday, September 17, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Thursday, September 17, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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23CV-04398	Erika Alvarez vs Quail H Farms, LLC, et al.
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Motion for Final Approval of Class Action Settlement, Award of Attorneys' Fees and Costs, and Incentive Award

The motion for final approval of class action settlement is GRANTED. The hearing on the final accounting is set for June 16, 2027, at 8:15 a.m. in Courtroom 8.

The Court has already granted preliminary approval of the settlement, including finding that the amount of the settlement is fair, adequate and reasonable. Nothing has occurred since that order that would change this Court's determination.

The Court will sign the proposed order lodged with the court on August 25, 2026.

25CV-00325

Mohammed Yahya vs Javier Maldonado, et al.

Motion to Tax Costs

The motion to tax costs is DENIED.

The filing, motion, jury fees, and deposition costs are expressly allowed and are reasonable. Although the conference room reservation costs are not expressly allowed, they are not expressly disallowed. After a review of the record, the Court in its discretion finds the conference room reservation costs were reasonably necessary and are reasonable in amount.

Accordingly, Defendant is awarded costs in the amount of \$2,605.00.

25CV-05975

Jose Valencia vs General Motors LLC

Order to Show Cause Re: Dismissal – Notice of Settlement

Appearance required. Appear to address the status of the conditional settlement for which notice was filed June 4, 2026, with an anticipated dismissal date of July 18, 2026, and show cause why the Court should not dismiss the matter, retaining jurisdiction for enforcement purposes pursuant to Code of Civil Procedure section 664.6. If there are no appearances, the matter may be dismissed by the Court pursuant to the settlement under California Rules of Court, rule 3.1385, as more than 45 days have passed since the date the settlement agreement conditions were to be completed.

25CV-06365

Michael Rocha vs Ford Motor Company, et al.

Status Conference

Appearance required. Appear to address status of arbitration ordered March 2, 2026.

26CV-00547

Joe Scoto vs Philip Snowberger

Motion for Attorney's Fees

The motion for attorney fees is GRANTED.

Plaintiff seeks to set the lodestar at \$25,549.50.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.)

The court begins its assessment with a lodestar figure. Lodestar refers to the “number of hours reasonably expended multiplied by the reasonable hourly rate” of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The rate is measured in the market place, and reflects several factors: the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case. (*Shaffer v. Superior Court* (1995) 33 Cal.App.4th 993, 1002.)

Plaintiff's counsel claims an hourly rate of \$460 for attorney Kimberly Flores, \$350 for attorney Yao Vang, and \$245 for paralegal Tim Kolb.

The Court finds the claimed hourly rates for the attorneys, while high for the local area, are within the range of rates charged in the local Merced community for the same or similar work. However, the claimed paralegal hourly rate is not representative of the rates charged in the local community. Accordingly, the Court finds it reasonable to set the hourly rate of paralegal Kolb at \$150 /hour.

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.)

After a substantial review of the entire record and the documents offered in support of Plaintiff's motion, the court finds the time billed is excessive and finds it reasonable to reduce the hours billed. The court finds it reasonable to reduce the total time for attorney Flores by 1.6 hours, attorney Vang by 13.8 hours, and paralegal Kolb by 2.8 hours.

This results in a lodestar of \$20,444. This represents the reasonable total billed time for attorney Flores of 15.9 hours at \$460 an hour, for attorney Vang of 31.9 hours at \$350 an hour, and paralegal Kolb at 13.1 hours at \$150 an hour.

Accordingly, the Court awards attorney fees in favor of Plaintiff in the amount of \$20,444.

Attorney fees are to be paid within thirty (30) days of this Court's order.

26CV-00661

Renee Haney vs Pacific Coast Services, Inc., et al.

Motion for Final Approval

The motion for final approval of class action settlement is **GRANTED**. The hearing on the final accounting is set for June 16, 2027, at 8:15 a.m. in Courtroom 8.

The Court has already granted preliminary approval of the settlement, including finding that the amount of the settlement is fair, adequate and reasonable. Nothing has occurred since that order that would change this Court's determination.

The Court will sign the proposed order lodged with the court on August 20, 2026.

26CV-02880

Richard Howard vs Merced Community College District, et al.

Demurrer to Plaintiff's Complaint

The demurrer to the first cause of action is **SUSTAINED, WITHOUT LEAVE TO AMEND**, as to the individual named defendants. Labor Code section 1102.5 imposes liability on an employer and does not impose personal liability on individual employees. As amendment would be futile, the demurrer is sustained without leave to amend.

The demurrer to the second cause of action is **OVERRULED**. Read as a whole, and considering Defendants' equal or superior knowledge, the complaint sufficiently pleads the second cause of action. Defendants have notice of the basic facts and nature of the claim, including the substance of the statements at issue. Any evidentiary gaps can be remedied through discovery.

Motion to Strike Treble Damages from Plaintiff's Complaint

Defendant's motion to strike treble damages from Plaintiff's complaint is GRANTED IN PART AND DENIED IN PART.

As to Defendant Merced Community College District, the motion is GRANTED WITHOUT LEAVE TO AMEND as the Court finds the treble damages to be punitive in nature. As punitive damages are not available against a government entity the motion is granted without leave to amend.

Accordingly, the Court strikes from the complaint, page 19, lines 9-10, and page 25, line 7, as to Defendant Merced Community College District only.

In so far as the motion pertains to the individual Defendants, the motion is DENIED.

26CV-04129 Jason Ochoa vs Jeremy Branco

Order to Show Cause Re: Restraining Order

Appearance required. Proof of unsuccessful service of the notice of hearing on Respondent was filed August 24, 2026.

26CV-04619 Karen Marquez vs Payton Johnson

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing on Respondent was filed September 2, 2026. A response was filed September 11, 2026, however it was not accompanied by a proof of service.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 17, 2026
10:00 a.m.

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Case No.	Title / Description
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23CV-04065	Lendmark Financial Services LLC vs. Tabbatha Browe, et al.
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Claim of Exemption – Michael Anthony Sanchez

Appearance required for judgment debtor.

24CV-03252	Patricia Bever vs. Erin May, et al.
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Status Hearing – Status of Default

Appearance required.

25CV-03596	Synchrony Bank vs. Sonia Piva
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Motion to Set Aside & Vacate Default Judgment and Request for Dismissal

The unopposed motion by plaintiff Synchrony Bank to vacate the default judgment entered on October 2, 2025, against defendant Sonia Piva and to dismiss the action with

prejudice is GRANTED pursuant to Code of Civil Procedure section 473 and in the interests of justice. Defendant claims fraud on the underlying account.

The Court will sign the proposed order submitted with the moving papers.

25CV-05183 TD Bank USA, N.A. vs. Victor Montero

Motion for Order Deeming Admitted Requests for Admission

The unopposed motion by plaintiff TD Bank USA, N.A. for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Victor Montero is GRANTED. (Code Civ. Proc., § 2033.280, subd. (b).) It is undisputed that Defendant has not served a response to Plaintiff's requests for admission prior to the hearing. In accordance with Code of Civil Procedure sections 2023.030(a) and 2033.280(c), the Court imposes a mandatory monetary sanction against Defendant in the amount of \$310.00 due and payable to Plaintiff thirty days from notice of entry of order.

The Court will sign the proposed order submitted with the moving papers (amended in accordance with the Court's ruling). Plaintiff is directed to provide notice of the order to Defendant.

26CV-04089 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-04376 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Ex Parte Application Calendar
Judge Pro Tem Alexandria Carl
Courtroom 9

627 W. 21st Street, Merced

Thursday, September 17, 2026
1:15 p.m.

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Case No.	Title / Description
26CV-02047	[Parties' names withheld pursuant to CCP § 1161.2(a)(1)]
	Ex Parte Application to Set Aside Court Judgment and for Order Staying Execution of Judgment
	Appearance required.